a legal adviser to watch the proceedings of the tribunal and *to give him advice on lines of cross examination*'. The person he wanted in that capacity was the lawyer Mr Duni Chand. He, however, would neither cross-examine the government witnesses nor address the court. Provided that seating accommodation was available in court, Mr Noad, the public prosecutor, took the view that there could be no reason to disagree with this application by Bhagat Singh. This being so, 'the tribunal sanctioned the arrangement proposed.'[5]

The case for the prosecution opened. Carden Noad called his first witness. It was G.T. Hamilton. When his statement was looked at it was disarming for what it disclosed: 'I do not know the facts of the case nor did I make the statements made in the complaint. I am acting only as a formal complainant under the instructions of the government.' This shows that the evidence of a British official was doctored in a way that he disclaimed all knowledge even of the statement that was being tendered by the prosecution on his behalf. Indeed, he claimed not to have any knowledge of the facts of the case! By the time we get to the approvers, two of the five withdraw their statements and only one is allowed to be cross-examined. Yet, the accused in the Lahore Conspiracy Case of 1930 were all convicted through the mouths of turncoats in circumstances where the government had no better evidence than that of the 'approvers'. Of the judges, none of them except Mr Justice Agha Haider, deigned to question the approvers closely, much to his eventual cost leading to his prompt removal within two weeks of the special tribunal starting to sit. There was no jury to assess the credibility of the witnesses or their demeanour. How could a tribunal of three judges, two of whom were recent replacements, ensure that the basic demands of fairness and justice were safeguarded? They could not because the special tribunal had not been constituted to serve a noble end. It had one purpose, and one purpose alone, which was to hand down punishment of death. And, in that design, it worked very well.